

ORDER UNDER SUB-SECTION (2) OF SECTION 5-A OF THE PUBLIC PREMISES (EVICTION OF UNAUTHORISED OCCUPANTS ACT, 1971.

To,

Shri/Smt. Ram chander Sharma S/o Shri Nazayan Sharma
House No. 533 White Road,
Nasirabad Cantt.

1. Whereas, I the undersigned, am of the opinion on the grounds specified below that you have erected/ placed/raised the building/immovable structure/fixture on the public premises mentioned in the schedule below in contravention of the provisions of sub-section (1) of section 5-A of the public premises (eviction of un-authorised occupants) Act, 1971 (as amended).

2. And whereas, by a written Notice No. 87 dated 3-12-99 you were called upon to removal or to show cause by Shri Ram chander Sharma why you should not remove such building/immovable/structure/fixture from the said public premises.

3. And whereas, you have omitted/refused to show cause/remove such building/immovable structure/fixture from the said public premises;

4. And whereas, I have considered the cause shown, by you for not removing the said building/immovable structure/fixture from the said public premises.

GROUND

The Cantt. Overseer and the Cantt. Executive Officer of the Cantt. Board, Nasirabad reported that Shri Ram chander Sharma had made encroachment on public premises by way of unauthorisedly constructing open court yard 15'6" x 24' x 35'6" as per details given below. The undersigned gave enough opportunity to Sh. Ram chander Sharma for producing oral/documentary evidence for proving his possession as valid on the public premises. However, after considering the reply, written arguments made his counsel and every document on record, the undersigned has reached to the conclusion beyond doubt that Shri Ram chander Sharma is in unauthorised possession of public premises as mention below.

Now, therefore, in exercise of the powers conferred by sub-section (2) of section 5-A of the said Act, I hereby order that the said building/immovable structure/fixture be removed from the said public premises. I also hereby order Shri Ram chander Sharma to pay a sum of Rs. 5000/- (Rupees Five Thousand only) assessed by me as cost of removal of the said building/immovable structure/fixture from the said public premises as an arrears of land revenue.

SCHEDULE

Land measuring 701 - 125 sq. fts. comprising khasra/survey 280/1985 part in Nasirabad Cantonment. District Ajmer, The above area is bound as under :-

On the North by :- Gully
On the South by :- Road
On the East by :- H. No. 534
On the West by :- Rasta

No. NC/PPE/ 705

Dated : 18 / 11 / 2004

सम्पदा अधिकारी
ESTATE OFFICER
Nasirabad

नसीराबाद छावनी
Nasirabad Cantt.

